

Jaipal Singh v. State of U.P.

Allahabad High Court · Division Bench · 9 February 2016 · Writ-C No. 5545 of 2016 · Writ-C No. 5545 of 2016 · **Writ dismissed; liberty to dispute the bill under clause 6.5(b).**

HEADNOTE

A Kutir Jyoti consumer disputing an entire electricity bill as excessive, including charges for a disconnected period, must first invoke clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005. The High Court will not examine the correctness of the bill in the first instance.

FACTUAL SUMMARY

Jaipal Singh claimed a Kutir Jyoti connection under the Union Government's programme for persons below the poverty line. He challenged a bill raised by the Executive Engineer of Madhyanchal Vidyut Vitran Nigam Limited, Budaun, as highly excessive and as covering even the period of disconnection. In substance he disputed the entire bill. Counsel for the distribution company pointed to the statutory alternative remedy under clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

excessive-bill dispute; alternative remedy

HOLDING

Where a consumer disputes an electricity bill as excessive, clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 furnishes a statutory alternative remedy, and the High Court will not in the first instance examine the correctness of the bill. The writ petition was dismissed with liberty to avail that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A Kutir Jyoti consumer disputing an entire electricity bill as excessive, including charges for a disconnected period, must first invoke clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005. The High Court will not examine the correctness of the bill in the first instance. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILL, INCLUDING CHARGES FOR THE DISCONNECTED PERIOD

Court declined to examine the bill on merits in the first instance. ¶ 1